

## 25STCV24447 25STCV24447

County: los-angeles

Division: Civil Law and Motion

Department: 307

Hearing date: 2026-08-18

Source URL:

[https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept\\_date=LAM%2C307%2C08%2F18%2F2026](https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C307%2C08%2F18%2F2026)

Source SHA-256: b70dda68eb7171bb9be1d9e468f02edb21d8f1db109ea3fd63d19c31cd4ced18

Case Number: 25STCV24447 Hearing Date: August 18, 2026 Dept: 307

#\_\_ TENTATIVE RULING 9:15 a.m., Tuesday, August 18, 2026

TIFFINY

BLACKNELL v. COUNTY OF LOS ANGELES, LOS ANGELES DISTRICT ATTORNEY'S OFFICE, et al. [25STCV24447]

SPECIAL

MOTION TO STRIKE PURSUANT TO CODE OF CIVIL PROCEDURE § 425.16 AS TO THE SECOND CAUSE OF ACTION IN THE THIRD AMENDED COMPLAINT OF DEFENDANTS COUNTY OF LOS ANGELES AND LOS ANGELES COUNTY DISTRICT ATTORNEY'S OFFICE

TIMELINE:

FEHA and Labor Code employment dispute

2002: Plaintiff Tiffany Blacknell ("Blacknell"), a 48-year-old, Black female, begins her career as an attorney for Defendant County of Los Angeles (the "County"). After serving as a public defender for many years, Blacknell is eventually hired by Defendant Los Angeles County District Attorney's Office ("LACDA") (collectively with the County, the "County Defendants"). Blacknell works her way up the ranks in LACDA and is ultimately hired as LACDA's chief of staff in February 2024.

During

her tenure, Blacknell "often served as the spokesperson" for LACDA and vocally opposed LACDA's historic failure to hold law enforcement accountable for police brutality. The publicity surrounding Blacknell's political views and her support of former DA George Gascón ("Gascon") caused her to become the target of hostility by those who

opposed DA Gascon's policies. As a result, Blacknell alleges she was subjected to personal attacks, often based on her race and gender. For example, for years, Deputy DA John Lewin ("Lewin")<sup>[1]</sup> made repeated comments about Blacknell's character, professional reputation, job qualifications, and political affiliations via both social media posts and emails to Blacknell.

2023: Defendant Nathan Hochman ("Hochman")<sup>[2]</sup>, the current DA and a supervisor at LACDA, announces his campaign for County DA. At a press conference, Hochman publicly demands Blacknell's termination and brandishes a sign bearing a photograph of Blacknell's face. In subsequent interviews, Hochman also made comments about Blacknell's job qualifications and her "pro-criminal" reputation.

11/27/2024: Blacknell takes a medical leave of absence.

12/2/2024: While Blacknell is on leave, she receives a letter from a Director at the County's Department of Human Resources informing her that Hochman would be taking office the following day and that her position of Deputy DA with the County would be terminated.

12/3/2024: Blacknell takes an assignment at the Public Defender's Office, which offered an inferior pay level than her prior position at LACDA.

12/20/2024: Blacknell files a formal Government Claim against Hochman, Lewin, and the County Defendants, which was denied as of 2/13/2025.

8/20/2025: Blacknell files the original Complaint, alleging causes of action for:

1. FEHA Discrimination (Age, Gender, and Race)
2. FEHA Harassment (Age, Gender, and Race)
3. FEHA Retaliation
4. Failure to Prevent Discrimination, Harassment,

and Retaliation

5. Whistleblower Retaliation in Violation of Lab.  
Code § 1102.5

6. Violation of Lab. Code § 232.5

7. Violation of Lab. Code § 1101-1102

8. Defamation

9. Compelled Self-Defamation

10.  
Negligence

11.  
Intentional  
Infliction of Emotional Distress

12/3/2025: The Court hears the special motions to strike filed by the County Defendants, DA Hochman, and Deputy DA Lewin. The Court grants the motions, thereby striking the 8th and 9th causes of action against the County Defendants and Hochman and the 8th through 11th causes of action against Lewin.

1/2/2026: Blacknell files the First Amended Complaint ("FAC"), without first seeking leave of the Court. The FAC (and all later iterations of Blacknell's complaint) alleges the first through seventh causes of action that also appeared in the original Complaint.

1/5/2026: The Court holds a hearing on the demurrers of DA Hochman and the County Defendants, each filed on 12/1/2025. The Court, in lieu of ruling upon the demurrers, accepts Blacknell's FAC as the operative complaint and takes the demurrers off calendar as moot.

2/3/2026: The County Defendants file a second demurrer as to all causes of action in the SAC.

2/27/2026: In lieu of opposing the County

Defendants' demurrer, Blacknell files an ex parte application for leave to amend the FAC, which the Court grants on 3/5/2026.

3/5/2026: Blacknell files the Second Amended Complaint ("SAC") pursuant to the Court's order. Accordingly, the Court places the County Defendants' pending demurrer to the FAC off calendar.

3/24/2026: The County Defendants file a third demurrer to the second, third, and fifth through seventh causes of action in the SAC, which the court sustains with leave to amend on 4/24/2026.

5/14/2026: Blacknell files the operative Third Amended Complaint ("TAC"), alleging the same seven causes of action for:

1. FEHA Discrimination (Age, Gender, and Race)
2. FEHA Harassment (Age, Gender, and Race)
3. FEHA Retaliation
4. Failure to Prevent Discrimination, Harassment, and Retaliation
5. Whistleblower Retaliation in Violation of Lab. Code § 1102.5
6. Violation of Lab. Code § 232.5
7. Violation of Lab. Code § 1101-1102

7/15/2026: The County Defendants file this Special Motion to Strike, which is followed by Blacknell's Opposition (7/31/2026) and the County Defendants' Reply (8/6/2026).

On the same day, the County Defendants also file a demurrer to the TAC, which is scheduled to be heard after this Special Motion to Strike.

TENTATIVE

RULING: THE COUNTY DEFENDANTS' SPECIAL MOTION TO STRIKE PURSUANT TO CODE OF

CIVIL PROCEDURE § 425.16 is DENIED.

SPECIAL

MOTION TO STRIKE

Just as

previous iterations of the complaint have alleged, this action arises out of the pattern of workplace harassment allegedly suffered by Blacknell during her tenure working as an attorney, and later as the chief of staff, for LACDA. Specifically, Blacknell alleges that her LACDA colleagues subjected her to discriminatory, harassing, and retaliatory conduct and targeted her with repeated online statements attacking her political affiliations, professional reputation, and job qualifications as well as her gender and race. (TAC, ¶¶ 13-19, 24-25, 38-39.) The County Defendants now move to strike the second cause of action for FEHA harassment from Blacknell's TAC pursuant to Code of Civil Procedure section 425.16 (the "anti-SLAPP" statute).

Blacknell

argues that the County Defendants' motion is untimely because it is premised on allegations that could have been challenged in an earlier version of the complaint. The Court agrees. Under Code of Civil Procedure section 425.16, subdivision (f), "a defendant must file an anti-SLAPP motion within 60 days of service of the first complaint ... that pleads a cause of action coming within section 425.16[ subdivision] (b)(1) unless the trial court, in its discretion and upon terms it deems proper, permits the motion to be filed at a later time." (*Newport Harbor Ventures, LLC v. Morris Cerullo World Evangelism* (2018) 4 Cal.5th 637, 641 (*Newport Harbor*), citing Code Civ. Proc., § 425.16, subd. (f).) "An amended complaint reopens the time to file an anti-SLAPP motion without court permission only if the amended complaint pleads new causes of action that could not have been the target of a prior anti-SLAPP motion, or adds new allegations that make previously pleaded causes of action subject to an anti-SLAPP motion." (*Newport Harbor*, *supra*, 4 Cal.5th at p. 641.) "To conclude otherwise,' ... 'would allow [plaintiffs] to circumvent the purpose of the anti-SLAPP statute by holding back ... causes of action from earlier complaints." (*Id.*; accord *Lam v. Ngo* (2001) 91 Cal.App.4th 832, 840-841.)

"A

court 'enjoys considerable discretion' in determining 'whether to allow [a] late filing of

an anti-SLAPP motion.' [Citation.]" (San Diegans for Open Government v. Har Construction, Inc. (2015) 240 Cal.App.4th 611, 624 (Har Construction).) "However, the court must exercise this discretion consistent with the purposes of the statute and must be mindful that the 60-day deadline is the general rule." (Ibid.) "In determining whether to permit a late motion, the most important consideration is whether the filing advances the anti-SLAPP statute's purpose of examining the merits of covered lawsuits in the early stages of the proceedings." (Ibid.) "Other relevant factors include the length of the delay, the reasons for the late filing, and any undue prejudice to the plaintiff." (Ibid.) In exercising the discretion to accept or deny a late-filed anti-SLAPP motion, trial courts have also considered factors such as whether extensive litigation and discovery has already been conducted. (See Newport Harbor, supra, 4 Cal.5th at p. 645 ["as the trial court noted when it exercised its discretion to deny a late filing, much litigation, including discovery, had already been conducted for two years before the anti-SLAPP motion brought it to a halt."].)

In this

case, the original Complaint was filed one year ago on August 20, 2025. (See Compl., generally.) On December 3, 2025, the Court granted the County Defendant's Special Motion to Strike the eighth and ninth causes of action (Blacknell's two defamation claims) from the original Complaint. (See Minute Order, 12/3/2025.) The original Complaint also contained a cause of action for FEHA harassment on the bases of age, gender, and race, which the County Defendants did not challenge in their prior anti-SLAPP motion. (See Compl., ¶¶ 33-40.) Blacknell's original harassment claim incorporated by reference the same conduct by DA Hochman and Deputy DA Lewin underlying the stricken defamation claims. (Id. ¶¶ 12-26.) The County Defendants had also filed a demurrer to the seventh through eleventh causes of action in the original Complaint (not including Blacknell's harassment claim), but the demurrer was taken off calendar upon the filing of the FAC. (See Minute Order, 1/5/2026.)

Blacknell

filed the FAC on January 2, 2026, which contained a substantially similar FEHA harassment claim to that in the original Complaint. (FAC, ¶¶ 32-39.) The County Defendants demurred to this cause of action in a demurrer filed on February 3, 2026, but the demurrer was never ruled upon due to Blacknell's ex parte application for leave to file the SAC, which was granted on March 5, 2026. (See Minute Order, 3/5/2026.)

Blacknell

filed the SAC on March 5, 2026, which once again contained a FEHA harassment claim based on the same general fact pattern. (SAC, ¶¶ 38-45.) The County Defendants then filed a demurrer to the SAC, which included a challenge to the second cause of action for FEHA harassment. The demurrer was sustained with leave to amend on April 24, 2026 on the basis that Blacknell had failed to allege sufficient facts to state her harassment claim due to the lack of obvious nexus between the hostile work environment and Blacknell's protected characteristics. (Minute Order, 4/24/2026, at pp. 3-4.)

Blacknell

filed the operative TAC on May 14, 2026. In the instant anti-SLAPP motion, which addresses only the second cause of action for FEHA harassment, the County Defendants appear to concede that the harassment claim primarily arises from DA Hochman's campaign statements and Deputy DA Lewin's political commentary. (Mot., at pp. 12-15.) Critically, the County Defendants expressly admit that "[e]ach of the challenged statements have already been adjudicated and correctly determined by this Court (in connection with the County's previous anti-SLAPP motion related to Blacknell's now-stricken defamation claims) to be political speech made in a public forum and addressing issues of public interest." (Id. at p. 8, italics added; see Minute Order, 12/3/2025, at pp. 9-11.) Although the County Defendants argue that they did not require leave of the Court to file this second anti-SLAPP motion, they do not clarify why this anti-SLAPP challenge could not have been raised in any of the three prior iterations of the pleadings, particularly considering their own admission that the challenged statements were already considered in the Court's prior anti-SLAPP ruling. (Rep., at pp. 12-13.) While Blacknell's pleading has been amended three times (which in theory, could re-open the time to file an anti-SLAPP motion), the County Defendants are still required to show either that: (a) the new pleadings contain "new" causes of action "that could not have been the target of a prior anti-SLAPP motion" or (b) that the new pleading "adds new allegations that make previously pleaded causes of action subject to an anti-SLAPP motion." (Newport Harbor, *supra*, 4 Cal.5th at p. 641.) For the reasons outlined below, the County Defendants fail to meet this burden.

In their

Reply, the County Defendants argue that the TAC is the "only complaint tying the harassment claim to protected speech." (Rep., at p. 12.) The Court finds no meaningful support for this assertion on the face of the various pleadings. For

example, both FEHA harassment claims in the original Complaint and the operative TAC are largely based on boilerplate allegations of the elements of harassment and rely on factual details incorporated by reference from the broader factual background. (Compare Compl., ¶¶ 33-40 to TAC, ¶¶ 50-57.) As early as the original Complaint, Blacknell included extensive background allegations related to DA Hochman and Deputy DA Lewins' political commentary under a heading titled "Facts Common to All Causes." (Compl., at pp. 7-16.) The second cause of action for FEHA harassment in the original Complaint expressly incorporated these facts by reference. (Id. ¶ 33.)

At their

core, both the original and the operative harassment claims are centered around the "attacks" by LACDA employees who opposed Gascon's policies, including DA Hochman and Deputy DA Lewin. (Compare Compl., ¶¶ 13-18, 21-22 to TAC, ¶¶ 13-25, 38-39.) Code of Civil Procedure section 425.16, subdivision (f) permits a subsequent anti-SLAPP motion to be filed only when an amended pleading introduces genuinely new claims or materially different factual bases for an existing claim, rather than factual allegations that merely clarify or supplement pre-existing allegations. As early as the original Complaint, Blacknell had already pleaded a hostile work environment harassment claim based on her race, gender, and age, alleging a campaign of hostile attacks by Deputy DA Lewin and other LACDA employees. All iterations of Blacknell's harassment claim have centered on the same pattern of online commentary related to LACDA's policies on law enforcement and criminal prosecution, as well as Blacknell's political ideology and competence in her position at LACDA. While the TAC does provide broader factual specificity with respect to the content of Deputy DA Lewin's harassing comments (e.g. calling Blacknell "an abomination" or "uneducated" and characterizing her work as "race hustling") and now identifies the names of several previously unidentified LACDA employees who joined Lewin's campaign (i.e. Ms. Hardiman, Ms. Decorse, and Ms. Ruby), these allegations merely expand on the factual context already pleaded in previous iterations of the complaint rather than materially altering the "gravamen" or the essential elements of Blacknell's harassment claim. (TAC, ¶¶ 16, 19, 23; see *Bonni v. St. Joseph Health System* (2021) 11 Cal.5th 995, 1012.)[3]

Moreover,

the Court is mindful of the fact that one year has passed since the filing of the original Complaint and trial is scheduled for early December 2026. To permit a late-filed anti-SLAPP motion to be heard on the merits at this point in the proceedings would significantly undermine the anti-SLAPP statute's



central purpose of “examining the merits of covered lawsuits in the early stages of the proceedings.” (Har Construction, supra, 240 Cal.App.4th at p. 624.) In addition to ongoing discovery, the County Defendants have already filed three demurrers and one anti-SLAPP motion challenging prior versions of Blacknell’s pleadings (two of which the Court has ruled upon). The County Defendants provide no meaningful explanation for their delay in deciding to challenge Blacknell’s harassment claim on SLAPP grounds until the fourth iteration of the pleadings.

In sum,  
to permit an untimely anti-SLAPP motion to proceed after 12 months of ongoing litigation, discovery, and other merits-based challenges would sanction the waste of judicial resources, unnecessary expenses, and inefficient resolution of the case. To borrow language from the California Supreme Court’s decision in Newport Harbor, at this point “[i]t is far too late for the anti-SLAPP statute to fulfill its purpose of resolving the case promptly and inexpensively.” (Newport Harbor, supra, 4 Cal.5th at p. 645.) “An anti-SLAPP motion is not a vehicle for a defendant to obtain a dismissal of claims in the middle of litigation; it is a procedural device to prevent costly, unmeritorious litigation at the initiation of the lawsuit.” (Id., quoting Har Construction, supra, 240 Cal.App.4th at pp. 625-626.) Code of Civil Procedure section 425.16, subdivision (f), “should be interpreted to permit an anti-SLAPP motion against an amended complaint if it could not have been brought earlier, but to prohibit belated motions that could have been brought earlier (subject to the trial court’s discretion to permit a late motion). This interpretation maximizes the possibility the anti-SLAPP statute will fulfill its purpose while reducing the potential for abuse.” (Newport Harbor, supra, 4 Cal.5th at p. 645.)

Therefore,  
the County Defendants’ Special Motion to Strike is DENIED.

Defendant County of Los Angeles and Los Angeles County District Attorney’s Office to serve notice of ruling. This tentative ruling (“TR”) shall be the order of the Court unless changed at the hearing and shall by this reference be incorporated into the Minute Order.

TR

emailed to counsel and posted to court website on 8/14/26 at 11:50 a.m.

[1] Deputy DA Lewin was removed as a defendant in this action on 5/14/2026.

[2] Although previously dismissed from this lawsuit, DA Hochman appears to be named again as a defendant in the TAC, although it is unclear if this was a typographical error.

[3] Tellingly, the County Defendants own motion groups the allegations related to Deputy DA Lewin and Blacknell's "other colleagues" into a single analysis and provides no specific argument explaining how the "new" factual allegations or actors materially alter the central "gravamen" of Blacknell's harassment claim. (Mot., at p. 14.) Even further, it is not clear from the limited references to the three other LACDA colleagues' comments in the TAC whether these isolated comments (i.e. "stripper," "overseer," and "gangster") were even political in nature as opposed to merely personal attacks against Blacknell in relation to her gender and race. The County Defendants have offered no evidentiary support for their conclusion that these particular posts (i.e. those not made by Deputy DA Lewin) are "criticisms of Plaintiff's public-facing policies." (Id., at p. 20.) Thus, to the extent that the County Defendants could argue that the specific identification of three new employees materially changes the underlying allegations supporting the harassment claim, the County Defendants fail to overcome their burden of demonstrating that such isolated comments constitute protected activity as a matter of law.